

**Stock Township, Harrison County, Ohio
Roadway Use and Maintenance Agreement
Gas and Oil Pipeline**

This agreement is entered into at Scio, Ohio between Stock Township, Harrison County, Ohio, a political subdivision, whose mailing address is 36380 Tappan Scio Rd. Scio, Ohio 43988 (hereafter "Authority" or "Township") and EAP Ohio, LLC, 5847 San Felipe, Suite 300 Houston, Texas 77057

(hereafter "Operator") and shall be as follows:

RECITALS

WHEREAS, Authority has control of the Township roads within Stock Township In Harrison County, Ohio and is required to keep such roads in good repair by law; and

WHEREAS, Operator is constructing a well site and intends to use TR 219 Beagle Club Road (.84 miles) to the Kidd well site.

WHEREAS, Authority and Operator desire to enter into an agreement, providing for the repair and maintenance of said TR 219 Beagle Club Road and bridges thereon as a result of **drilling activity**.

THEREFORE, in consideration of good faith performance by each party of the mutual covenants hereinafter set forth, and other good and valuable consideration, the Operator agrees to the maintenance and repair of said roads and bridges, to their pre-existing condition prior to **drilling activity** and for any damage caused by the **drilling activity of said portion of Buxton road** throughout the Township.

FURTHER, Operator shall also provide the strengthening and upgrading of the roads and bridges if mutually agreed to be necessary, prior to or during any **drilling activity**. The areas and structures required to be strengthened and/or upgraded shall be determined by the engineer provided by the Operator with the approval of the Authority to be provided within thirty (30) days of a written request submitted by the Operator. Operator's engineer shall provide a written report detailing the condition of the roads and Appurtenances covered under this Agreement along with any recommendations, if necessary.

BOTH PARTIES FURTHER AGREE to the following additional terms and conditions:

1. Those portions of said roads and bridges and their appurtenances to be used by Operator hereunder and mutually agreed to require necessary strengthening and/or Upgrading by the Operator's Engineer in conjunction with the Authority shall be Strengthened and/or upgraded to a condition sufficient and adequate to sustain the Anticipated pipeline activity by Operator, at Operator's sole expense, and with the Advice and approval of the Authority as detailed in Appendix A. Thereafter, such roads shall be maintained by Operator for damages caused by Operators pipeline Activity, at Operator's sole expense, throughout the term of this Agreement, to a level Consistent with the condition of such roads at the commencement of its use by the Operator's engineer and the Authority. The maintenance of the aforementioned roads includes the use of a commercially recognized dust palliative to control the airborne Dust created and/or contributed to by the Operator of the Operator's contractor's and/or agents.

2. Unless accepted for the reasons provided below, prior to the Pipeline Activity on the Route, Operator shall post a bond or other surety in a form satisfactory to the Authority to cover the costs of any damage caused by the Pipeline Activity on the Route by Operator. The amount of the bond or surety shall be in an amount no greater than _____ & 00/100 DOLLARS (\$ _____.00) per mile. However, no such bond or surety shall be required of Operator, If any of the following conditions are satisfied:
 - a. A geotechnical analysis of the Route provided by the Operator and mutually accepted by the Authority and Operator exhibits that the Route's condition is sufficient for the expected traffic necessary for the development of the oil and gas development site.
 - b. The Operator provides a geotechnical analysis of the Route, mutually accepted by the Authority and Operator, and based on the analysis, an Operator and Authority-approved maintenance plan for the Agreement as an addendum.
 - c. The Operator has provided a sufficient bond or surety, mutually accepted by the Authority and Operator, in favor of the Authority for road usage by the Operator with in the Authority's oversight.
3. Either the Operator or the Authority may terminate this Agreement with just cause, following at least thirty (30) days written notice to the other of its intent to terminate.
4. As soon as practicable after receipt of such notice, the Authority and the Operator shall inspect said roads and bridges and their appurtenances. Following final inspection, the parties shall meet, and all restoration resulting from Operator's pipeline activity shall be identified and thereafter completed by the Operator, at Operator's sole expense. Following completion of all restoration work, this agreement shall be terminated and of no further force of effect.
5. All motor vehicles to be utilized by Operator hereunder, whether owned by Operator or others, shall comply with legal size, load and weight limits in accordance with State Law, and all non-conforming vehicles shall require the proper local permit.
6. Operator shall furnish the Authority with a written Letter of Authority, setting forth all necessary contact information, including twenty four (24) hour emergency contact number, for the authorized local representative of the Operator, and such information shall be maintained and kept current at all times concerned hereunder.
7. If Authority determines that any additional traffic signage is needed, or desired, as a result of this Agreement and in the interests of safety, Then Operator shall provide for signage at Operator's sole expense. In the event that any other safety concerns should arise during the course of this Agreement, Operator, and Authority agree that they will mutually discuss such concerns and reach a resolution satisfactory to all concerned.
8. Operator shall protect, save, indemnify, and hold the Authority, its officials and employees harmless from any liability, claims, damages, penalties, charges, or costs which may arise or be claimed as a result of any violations of any laws or

Appendix A

Operator shall be required to:

- 1) Provide an engineering report detailing pavement thickness and composition, base thickness and composition and subgrade composition, as and if reasonably determinable. Engineering report to also provide an analysis of conditions along with a recommendation, if mutually agreed to be necessary, for upgrading roadway to handle anticipated **Drilling Activity**. **This roadway was previously upgraded. Operator plans on Trimming trees, ditching (as needed) and placing 4 inches of 304 aggregate.**
- 2) Upgrade TR219 Beagle Club Road roadway in accordance with the approved plans on file at the Harrison County Engineers Office. **(As mentioned above).**
- 3) Maintain TR219 Beagle Club Road during **Drilling** Activities for those damages caused by said **Drilling** Activities.
- 4) Reimburse the Authority for Minor maintenance of the road during the hauling period (or provide for a contractor to perform minor maintenance on 24 hour notice) for damages caused by **Drilling** Activities.

Authority shall:

- 1) Provide for minor maintenance of the road during the **Drilling** Activity for damages not caused by said Drilling Activity. For any work that is to be reimbursed by the Operator the Authority, Authority agrees to give 24 hour prior notice to the Operator (or agrees to notify Operator when maintenance is needed.).
- 2) Provide for maintenance of the roadway and bridges for damages not caused by the Pipeline Activity at the Authority's cost and expense; as required by law.

APPENDIX B

- 1) Operator agrees to make all necessary approved road improvements prior to the commencement of any construction of well pads or pipelines.
- 2) Term limit - (6 months) to commence active work on roads from the date the RUMA is signed
- 3) All necessary approved road improvements shall be made in accordance with the standards as noted by the Harrison County Engineer. See Exhibit 1 (attached.)
- 4) The Road noted in this RUMA must be certified to meet the standards of any loads heavier than the legal limits. In the event that the road has to be upgraded, must meet the standards set forth by the County Engineer. See Exhibit 1 (attached.)
- 5) Operator agrees to no loading or unloading of equipment or materials on Township Roadways or within Right-of-Way.
- 6) Operator must obtain permission from the property owner for operations staging area. Operators shall not impede the flow of traffic.
- 7) Operator agrees to not park on any roadways or township rights of way. Roadways will be clear for the travel of free flowing traffic
- 8) If the operator makes a video of the roads before construction, we need to be notified the minimum of 3 days prior to making the video for self inspection, and

- operator agrees to give the Township a copy of the video.
- 9) Operator agrees to stay in weekly communication with the appropriate Township Trustee on the conditions of the roadways.
 - 10) Operator agrees to commence necessary maintenance and repairs to the roadways within 72 hours of a notice from the Trustee of Stock Township.
 - 11) Operator agrees to reimburse Stock Township for any expense rendered for damages caused by operator not repaired within 72 hours of notice.
 - 12) Operator agrees that the definition of term notice includes any of the following forms: Text Message to the Operators agreed contact, E-Mail to the Operators agreed contact, Hand-Delivered to the Operators agreed contact, and US Mailed letter to the Operators agreed contact, and telephone call to the Operator's contact.
 - 13) Operator agrees that they will provide sand seal as dust control on specified roads.
 - 14) Operator agrees to utilize recommended speed limits and enforce this policy with their employees.
 - 15) Operator agrees to keep the roadways free of any debris (mud, and other safety hazards) at all times.
 - 16) Operator agrees to provide neutral engineered study of the roadway for approval. N/A
 - 17) Operator agrees to cease all traffic during school bus traveling times.
 - 18) Operator agrees to contact all Trustees, Emergency Crews, County Sheriff, County Engineer, and residence of any blockage of the roadways, minimum of 36 hours notice.
 - 19) Operator agrees to take responsibility for any earth movements directly along roadways or crossing associated with said Pipeline Activity that may compromise the Township's Rights-of-Way for the period in which the pipeline is in production. N/A
 - 20) Operator agrees to provide monetary and physical assistance to the Township Trustee's in inclement weather.
 - 21) Operator agrees there will be no motorized vehicles on roadways that are not properly licensed and approved under the Ohio Revised Code (4519.41 Operation of vehicle on a highway, street or road.)
 - 22) Operator agrees to reconstruct pavement or chipped and sealed areas of roadways in existence at the adoption of this agreement.
 - 23) Operator agrees to provide 100 tons of 57 limestone for each road impacted by this agreement.

- ordinances, or any loss, damage or expense, including injury or death to any person, from any cause or causes from **drilling** activity whatsoever.
9. Operator assumes all liability for subcontractors and or agents working on Operator's behalf.
 10. Operator agrees to perform all necessary repairs in accordance with Authority's determination. Authority shall determine material type and specifications prior to repair work being performed.
 11. This Agreement shall be binding upon Operator and Authority, and their respective successors and assigns.
 12. In the event that any clause, provision or remedy in this Agreement shall, for any reason, be deemed invalid or unenforceable, the remaining clauses and provisions shall not be affected, impaired or invalidated and shall remain in full force and effect.
 13. Operator agrees to the delivery of one hundred (100) ton of fifty seven (57) aggregate (Lime Stone) to the Authority's Township Hall or a designated area during and or after thirty (30) days of construction.
 14. Operator agrees to notify the local Emergency Responders and local school bus Coordinator of any road closures 48 hours prior to construction or closure.
 15. Operator agrees to give 48 hours notice for any open cut of any roadway. Said notice shall be provided in writing to the Township and also posted by signage on said roadway.
 16. Agreement shall be governed by the laws of the State of Ohio.
 17. This Agreement shall be in effect on _____ 20 .

APPROVAL PAGE

Executed in duplicate on the dates set forth below:

Authority

By: _____

Collin Albaugh

By: *Douglas Henderson*

Douglas Henderson

By: *Mike S Henderson*

Mike S. Henderson

Approved As To Form

Santha

Harrison County Prosecuting Attorney

Dated: *1/29/25*

Operator

By: *Douglas F Schaefer*

Printed *Douglas F Schaefer*

Company: *EAPOHIO LLC*

Title: *Supervisor, Road Construction*

Dated: *1/8/2025*